

Chapter VIII: Fundamental Rights and Freedoms under the FDRE Constitution

8.1. Module Introduction

Dear student, we have been discussing so far about the major issues of constitutional law with a focus its governance aspects. As I have stated to you in the previous course material, one of the principles of constitutional law is the principle of fundamental rights and freedoms and due to its prominence, it needed to be treated as a separate module in your course work. It is a well deserved apportionment of the material considering the significance the FDRE, as well as many other constitutions of the world for that matter, attach to those rights and freedoms. For example almost one-third of the constitutional text is covered by these rights and freedoms, and the stringent amendment procedures stipulated in Article 104 and 105(1) of the constitution also reiterate this importance. Article 13(1), by imposing a duty on both federal as well as regional legislative, executive and judicial organs to protect and enforce those rights and freedoms gives the provisions of chapter III of the constitution a special position. We are, therefore, going to discuss Chapter III of the constitution.

8.2. The nature of the fundamental rights and freedoms

The name ‘fundamental rights and freedoms’ is used to describe all those rights included in chapter III which the constitution later on classifies them as Human Rights and Democratic Rights. Dear student, what do you think is the difference between ‘right’ and ‘freedom’ or do you think they are synonymous? Can the Amharic translation of the terms be of any use, i.e., ‘*mebit*’ e’na ‘*netsanet*’?

In jurisprudence and law, a *right* is the legal or moral entitlement to do or refrain from doing something or to obtain or refrain from obtaining an action, thing or recognition in civil society. Rights serve as rules of interaction between people, and, as such, they place constraints and obligations upon the actions of individuals or groups (for example, if one has a right to life, this means that others do not have the liberty to murder him).

There are two main modern conceptions of rights: on the one hand, the idea of *natural rights* holds that there is a certain list of rights enshrined in nature that cannot be legitimately modified by any human power. On the other hand, the idea of *legal*

rights holds that rights are human constructs, created by society, enforced by governments and subject to change.

Consequently, two fundamental controversies exist that surround the notion of rights: First, there is the question of the *basis* for rights (on what basis rights can be said to exist, are they natural or are they a human construct). Second, there is the question of the *content* of rights (what the rights of a person actually are, can a person possess unlimited rights to do whatever s/he can or is there a possible limit on it, if so where does that limit begin or end).

The word freedom, on the other hand, is claimed to have originated in England. English had its beginnings about fifteen hundred years ago, when the "Angle-ish" spoken by Angles and Saxons separated from other Germanic languages as the Angles and Saxons themselves, crossing the water to settle in what they would call "Angle-land," separated from other Germanic tribes. Since that time, no word has been of more significance to English speakers than *freedom*. This word was not carried to England as part of the Angles' and Saxons' Germanic language heritage, nor was it imported from another language. Instead, it seems to have been a homemade invention, put together from two existing Germanic words to form a distinctive concept.

The elements of freedom are *free* and *doom*, to use the modern spellings. Free originally meant "beloved" and is related to the word 'friend.' By the time English came into being, free had evolved to take on its modern meaning, with the idea that one who is beloved is a friend, free from bondage. The development of doom is more complicated. Nowadays we think of doom as a judgment or as an unhappy fate. A thousand years ago, in the time of the early English language, doom had a different emphasis. It did indeed mean judgment, but it meant a considered judgment, related to the present-day *deem*.

Put free together with doom and you have the condition of being judged to be free. It involves being free and thinking about it, being free and accepting the responsibility for making the judgments that being free entails. This word has made its way into the world human rights regime by the renowned activist President Roosevelt of the US in the 1940s. His 'four freedoms' speech remained to be quite historical with this regard in which he described four fundamental freedoms that he considered

indispensable for every human kind. The following is an excerpt from his 6 January 1941 State of the Union's Speech that he delivered to Congress;

*"In the future days which we seek to make secure, we look forward to a world founded upon four essential human freedoms; The first is **freedom of speech and expression**-everywhere in the world; The second is **Freedom of worship**. That is, freedom of every person to worship whomever (be it God, or any other deity/deities) in his own way-everywhere in the world; The third is **freedom from want**, which, translated into world terms, means economic understandings which will secure to every nation a healthy peacetime life for its inhabitants-everywhere in the world; The fourth is **freedom from fear**, which, translated into world terms, means a world-wide reduction of armaments to such a point and in such a thorough fashion that no nation will be in a position to commit an act of physical aggression against any neighbor-anywhere in the world.*

That is no vision of a distant millennium. It is a definite basis for a kind of world attainable in our own time and generation. That kind of world is the very antithesis of the so-called "new order" of tyranny which the dictators seek to create with the crash of a bomb."

Therefore, the terms 'right' and 'freedom' speak almost the same situation though the latter seems wider in scope and applies to particular notions of rights as propounded by Roosevelt. It is almost universally recognized that when we speak of those four aspects of human rights, they are referred to as 'freedoms' than 'rights' accordingly it is hardly possible to hear someone saying 'right to religion' rather than 'freedom of religion'. The same is true for freedom of expression, freedom of association, etc. 'Freedom from want' is now what we call the right to development which was also enunciated in the UN Charter, and in the International Bill of Rights.¹

Human Rights had been, at least until the post WWII a domestic affair into which no other country had a say except the sovereign states themselves. And the normal approach towards the rights has been to provide them within the constitutional document so that the government's power would be restrained to that extent. After

¹ The International Bill of Rights is used to refer to the three principal UN Human Rights instruments: The 1948 Universal Declaration of Human Rights, The 1966 International Covenant on Civil and Political Rights as well as the International Covenant on Economic, Social and Cultural Rights.

the WWII, however, the major world powers realized that the temptation for external aggression is just a reflection of internal suppression of rights and there should be a mechanism to regulate through international covenants the conducts of states towards not only other states but also their own citizens. Then after, beginning with the Universal Declaration of Rights, many international human rights instruments have come into existence. This, however, is not meant to substitute the domestic regime of rights. It rather is only meant to complement those minimum domestic standards and depending on the legal system of the country those international regimes may or may not have direct application in the national plane.

Chapter III of the constitution is, therefore, laying down the minimum national human rights standards that the state has promised to '*respect, protect and fulfill*.' These are the three levels of obligations that human rights legislations impose on those states that provide the fundamental rights and freedoms. First, the state has the obligation to 'respect' those rights in the sense that it must not, by its actions, violate the right to life of individuals. Second, the state has the duty to 'protect' the fundamental rights and freedoms of individuals by, for instance, prohibiting murder through its criminal laws and punishing those who violate the criminal law. Finally, there is another aspect of the fundamental rights and freedoms which is a controversial one. This is the obligation to 'fulfil.' A state must be able to provide health care services, safe and clean drinking water, as well as adequate housing for the right to life to be of any meaning. For instance, the Indian Supreme court had once found the state in violation of the right to life because of its failure to provide housing for slum dwellers. This obligation is controversial basically because of the fact that it requires resources to fulfil the rights and accordingly there is a tendency to classify the rights into those that are only aspirational and those which are enforceable immediately, which we will be looking into them in detail later on in the section of classification of rights.

Dear student, are you following our discussion? I hope you do and it is very important that you should read time and again the provisions of the constitution Chapter III for the proper understanding of the nature of the rights.

Respect, Protect and Fulfil: In relation to Women's Human Rights (AI)

The obligations of states under human rights law are often summarized under

three categories: 'respect, protect, fulfil'.

The obligation to *respect* focuses directly on what the government does through its organs, agents and the structures of its law. Is there a constitutional provision for equality between men and women in all spheres? Does the law restrict some employment to men, and discriminate against women? Do some agents of the state such as the police, regularly sexually assault and extort money from prostitutes with impunity? Does the state compel women to be sterilized as part of a population reduction policy? Does it deny information on contraception to adolescent girls in the name of respecting a dominant cultural or religious claim?

The State is also required to *protect* women's human rights. This principle 'requires from the state and its agents measures necessary to prevent other individuals or groups from violating the integrity, freedom of action, or other human rights of the individual'. By this, the state has undertaken, for example, to prevent acts of direct and indirect discrimination against women. This could include preventing discriminatory acts that restrict women and girls from going to school by allowing sexual harassment to continue unabated, or to ensure that a woman is not deprived of equal rights to employment by giving her husband the power to veto her employment contract.

The obligation to *fulfil* 'requires the state to take the measures necessary to ensure, for each person within its jurisdiction, opportunities to obtain satisfaction of those needs, recognized in the human rights instruments, which cannot be secured by personal efforts'. This obligation for women and men covers everything from providing a healthy environment and clean water to, more generally, upholding the conditions necessary for women's NGOs to form and function.

1.3 Classification of Fundamental Rights and Freedoms

Dear student, now we are going to see the classification in general of rights and freedoms and then we shall be looking into the way that the Ethiopian constitution tries to classify the rights. Even if these are not exhaustive listings of all types of classifications, we shall be discussing some four ways of categorization, i.e., civil and political rights vs. economic, social and cultural rights; First, second and third

generation rights; Norms of Aspiration and enforceable rights; and the one the FDRE constitution has adopted which is human rights and democratic rights.

a) Civil and Political rights vs. Economic, Social and Cultural rights

This was a classification adopted by the international Bill of Rights after a prolonged controversy. While the Universal Declaration of Human Rights made no distinction between these forms of rights, during the drafting of the two other Covenants there had arose a difference of opinion in either coming up with a single and universal human rights instrument that included, as did the UDHR, both civil and political rights as well as Economic, Social and Cultural Rights, or splitting them into two separate instruments. The latter idea was supported by capitalist countries such as the US that favoured only the civil and political rights while the former had been highly supported by the then socialist countries. Finally, the latter view had been accepted and two covenants had been adopted in 1966, which came into force after ten years, in 1976. What is the difference between the two types of human rights?

Civil and political rights are those rights that are sometimes referred to as first-generation rights that primarily protect individual rights such as right to life, prohibition of torture, cruel, inhuman or degrading treatment or punishment, the right to liberty and security of person, the freedom of movement, freedom of association, freedom of religion, freedom of expression, right to equality, the right to vote and be elected, etc.

The economic, social and cultural rights, on the other hand, are, as its name implies, are rights that relate to the socio-economic, and cultural wellbeing of individuals and groups within the country, and they are referred sometimes as second generation rights. In these category of rights are the right to non-discrimination, the right to work, the right to just and favourable conditions of work, the right to form trade union, the right to social security, the right to protection of family life, the right to adequate standard of living, the right to health, the right to education, and the right to participate in cultural life.

Dear student, what kind of difference do you see in these listing of rights? What can you say, for instance, about the difference between the right to freedom of expression and the right to health? (By the right to health we mean, among others, the provision of at least basic health care services to individuals by the state). Write your opinion on the following lines.

It is a question of what it takes to respect individual's freedom of expression and what it takes to provide to individuals and communities basic health care services by the state. The former involves no or little resource for its rendition while the latter must be supported by investing huge amount of resources by the state to construct health care centres, employ health officers, and provide equipments as well as medicines. That distinguishes the two rights and accordingly, the wordings of the covenants differ fundamentally. One of the operative provisions of each of the Covenants stipulates the following in a manner that loudly speak of their basic difference;

Article 2(1) International Covenant on Civil and Political Rights²

Each State Party to the present covenant **undertakes to respect and ensure** to all individuals within its territory and subject to its jurisdiction the rights recognised in the present covenant without distinction of any kind, such as race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status.

Article 2(1) of the International Covenant on Economic, Social and Cultural Rights

Each State Party to the present covenant **undertakes to take steps**, individually and through international assistance and co-operation, especially economic and technical, **to the maximum of its available resources**, with a view to achieving **progressively the full realisation of the rights recognised in the present covenant by all appropriate means**, including particularly the adoption of legislative measures.

In these provisions we see very distinct wordings that make the two rights very much different. The nature of states' obligations in the case of the civil and political rights is a kind of an immediate effect and not subject to any form of resource availability. And states are supposed to respect and ensure those rights to all individuals within their territory. When it comes to the economic and social rights,

² Ethiopia is a party to this Covenant. In fact it is a party to a total of seven international and regional human rights instruments. These are International Covenant on Economic, Social and Cultural Rights (ICESCR), the International Convention on the Elimination of All Forms of Racial Discrimination (ICERD), the International Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW), the Convention on the Rights of the Child (CRC), and the African Charter on Human and People's Rights (ACHPR)

the obligation of the states is just to take steps. And states are only required to take such steps to the extent of their available resources in the realisation of those rights and accordingly, the rights are not immediately achievable rather only with progressivity.

b) First, Second and Third Generation rights

The division of human rights into three generations was initially proposed in 1979 by the Czech jurist Karel Vasak at the International Institute of Human Rights in Strasbourg. He used the term at least as early as November 1977. Vasak's theories have primarily taken root in European law, as they primarily reflect European values. His divisions follow the three watchwords of the French Revolution: Liberty, Equality and Fraternity.

First-generation human rights (FGHR) deal essentially with liberty and participation in political life. They are fundamentally civil and political in nature, and serve to protect the individual from excesses of the state. First-generation rights include, among other things, freedom of speech, the right to fair trial, freedom of religion, and voting rights. They were first enshrined at the global level by the 1948 Universal Declaration of Human Rights. There are many writers who propound that when first generation human rights are limited this directly limits second generation rights in the sense that where there are limits on freedom of speech and expression it is not likely that people in that state will have adequately enforceable socio-economic rights.

Second-generation human rights are related to equality and began to be recognized by governments after World War I. They are fundamentally social, economic, and cultural in nature. They ensure different members of the citizenry equal conditions and treatment. Secondary rights would include a right to be employed, rights to housing and health care, as well as social security and unemployment benefits. Like first-generation rights, they were also covered by the Universal Declaration of Human Rights.

Third-generation human rights are those rights that go beyond the mere civil and social, as expressed in many progressive documents of international law. Because of the principle of sovereignty and the preponderance of would-be offender nations, these rights have been hard to enact in legally binding documents. The term "third-

generation human rights" remains largely unofficial, and thus encompasses an extremely broad spectrum of rights, including:

- Group and collective rights
- Right to self-determination
- Right to economic and social development
- Right to a healthy environment
- Right to natural resources
- Right to communicate
- Right to participation in cultural heritage
- Rights to intergenerational equity and sustainability
- Right to peace and security

c) Norms of Aspiration and Enforceable rights

This form of classification basically owes its base in the Indian constitution that provides the Bill of Rights in three groups: Fundamental Rights, Directive Principles of State Policy and Fundamental Duties. While section 32 of the constitution provides 'the right to move the Supreme Court by appropriate proceedings for the enforcement of the rights conferred by this Part (which enumerates the fundamental rights) is guaranteed', those directive principles of state policy are just considered as norms of aspiration. Part IV Section 37 of the constitution, which provides about those 'norms of aspiration' states 'The provisions contained in this Part shall not be enforceable by any court, but the principles therein laid down are nevertheless fundamental in the governance of the country and it shall be the duty of the State to apply these principles in making laws.' Thus, those directive principles, which predominantly relate to economic, social and cultural rights, are supposed to be realized by the state's legislation progressively. They only serve as policy guides for the government.

d) Human Rights and Democratic Rights

Our constitution's approach is distinct in that it classifies the fundamental rights and freedoms into human rights and democratic rights. The apparent understanding of the terms might suggest that the classification is meant to put distinguish between civil rights and political rights, though the content of the enumerated rights does not support this understanding.

Let's see the listings of the human rights and democratic rights as included in our constitution.

Human Rights	Democratic Rights
• The right to life (Art. 15) • The right to security of Person (Art. 16) • The Right to Liberty (Art. 17) • Prohibition Against Inhuman Treatment (Art. 18) • Right of Persons Arrested (Art. 19) • Right of Persons Accused (Art. 20) • Right of Persons Held in Custody and Convicted Persons (Art. 21) • Non-Retroactivity of Criminal Law (Art. 22) • Prohibition of Double Jeopardy (Art. 23) • Right to Honor and Reputation (Art. 24) • Right to Equality (Art. 25) • Right to Privacy (Art. 26) • Freedom of Religion, Belief and Opinion (Art. 27)	• Right of Thought, Opinion and Expression (Art. 29) • Right of Assembly, Demonstration and Petition (Art. 30) • Freedom of Association (Art. 31) • Freedom of Movement (Art. 32) • Right of Nationality (Art. 33) • Marital, Personal and Family Rights (Art. 34) • Right of Women (Art. 35) • Right of Children (Art. 36) • Right of Access to Justice (Art. 37) • The right to vote and be elected (Art. 38) • Right of Nations, Nationalities and Peoples to Self-Determination Including Secession (Art. 39) • The Right to Property (Art. 40) • Economic, Social and Cultural Rights (Art. 41) • The right of Labor (Art. 42) • The Right to Development (Art. 43) • Environmental Rights (Art. 44)

From what we have seen above generally in the classification of human rights, which one of the three do you think does our constitution follow? It appears that our

constitution followed neither of the above classifications. When we see the contents of the human right part, they are purely that of civil and political rights. When it comes to the classes of democratic rights, we find both civil and political rights, as well as economic, social and cultural rights. So, the democratic rights part is a mix of all the three generation rights. Can you tell me examples for each generation of rights from the democratic rights included in the FDRE constitution?

1.4. Derogations in State of Emergency

A state of emergency is a governmental declaration that may suspend certain normal functions of government, may work to alert citizens to alter their normal behaviors, or may order government agencies to implement emergency preparedness plans. It can also be used as a rationale for suspending fundamental rights and freedoms. Such declarations usually come during a time of natural disaster, during periods of civil unrest, or following a declaration of war (therefore, in democratic countries many call this martial law, most with non-critical intent).

In some countries, the state of emergency and its effects on civil liberties and governmental procedure are regulated by the constitution or a law that limits the powers that may be invoked during an emergency or rights suspended. It is also frequently illegal to modify the emergency law or Constitution during the emergency. Dear student, now we shall briefly see who and how is a state of emergency to be declared under Ethiopian law, and then which of the fundamental rights and freedoms are susceptible for suspension by such declaration.

It is very important that you understand clearly the provision on State of Emergency which is provided under the FDRE constitution as one of the 'miscellaneous' issues. This by no means is to imply that those Articles are merely ordinary left-overs having no significance. However, matters of great significance such as concurrent powers of the two levels of government (relating to taxation), and the procedures for the amendment of the constitution are some of the matters dealt in this miscellaneous part including State of Emergency provision Article 93. I have duplicated that provision for you here for easy access;

Article 93: Declaration of State of Emergency

1.

- a) *The Council of Ministers of the Federal Government shall have the power to decree a state of emergency, should **an external invasion, a break down of law and order which endangers the Constitutional order and which cannot be controlled by the regular law enforcement agencies and personnel, a natural disaster, or an epidemic** occur.*
 - b) *State executives can decree a State-Wide state of emergency should a natural disaster or an epidemic occur. Particulars shall be determined in State Constitutions to be promulgated in conformity with this Constitution.*
2. *A state of emergency declared in accordance with sub-Article 1(a) of this Article:*
- a) *If declared when the House of Peoples' Representatives is in session, the decree shall be submitted to the House within forty-eight hours of its declaration. The decree, if not approved by a two-thirds majority vote of members of the House of Peoples' Representatives, shall be repealed forthwith.*
 - b) *Subject to the required vote of approval set out in (a) of this sub-Article, the decree declaring a state of emergency when the House of Peoples' Representatives is not in session shall be submitted to it within fifteen days of its adoption.*
3. *A state of emergency decreed by the Council of Ministers, if approved by the House of Peoples' Representatives, can remain in effect up to six months. The House of Peoples' Representatives may, by a two-thirds majority vote, allow the state of emergency proclamation to be renewed every four months successively.*
- 4.
- a) *When a state of emergency is declared, the Council of Ministers shall, in accordance with regulations it issues, **have all necessary power to protect the country's peace and sovereignty, and to maintain public security, law and order.***
 - b) *The Council of Ministers shall have the power to **suspend such political and democratic rights contained in this Constitution** to the extent necessary to avert the conditions that required the declaration of a state of emergency.*
 - c) *In the exercise of its emergency powers the Council of Ministers can not, however, suspend or limit the rights provided for in Articles 1, 18, 25, and sub-Articles 1 and 2 of Article 39 of this Constitution.*

5. *The House of Peoples' Representatives, while declaring a state of emergency, shall simultaneously establish a **State of Emergency Inquiry Board**, comprising of seven persons to be chosen and assigned by the House from among its members and from legal experts.*
6. *The State of Emergency Inquiry Board shall have the following powers and responsibilities:*
 - a) *To make public within one month the names of all individuals arrested on account of the state of emergency together with the reasons for their arrest.*
 - b) *To inspect and follow up that no measure taken during the state of emergency is inhumane.*
 - c) *To recommend to the Prime Minister or to the Council of Ministers corrective measures if it finds and case of inhumane treatment.*
 - d) *To ensure the prosecution of perpetrators of inhumane acts.*
 - e) *To submit its views to the House of Peoples' Representatives on a request to extend the duration of the state of emergency.*

It would really be helpful if you read this provision at least twice for a better understand of the issues described and which we shall be discussing in a bit. First of all who has the power to declare a state of emergency or as most countries call it martial law according to this provision?

It is the **Council of Ministers** which is given the power to declare a state of emergency. When it comes to the regions, the state councils are given such powers, the specifics of which are going to be determined in the particular state constitution. However, the Council of Ministers' decision for declaring an emergency situation is to be checked by the highest political organ of the country, which is the House of Peoples' Representatives. Therefore, the Council's decision remains to be provisional until it gets a two-thirds majority approval within the House which shall look into the matter, where it is in session, within 48 hours. Where such declaration has been issued during those months where the House is in recess, the Speaker of the House shall call for a meeting to consider the matter as stipulated under Art 58 (4). Since such emergency calling of the members of the House for a meeting will take time, 15 days are given for the Council to present the matter to the House for approval.

But under Art 55(8) it is provided that the House Peoples' Representatives, '*in conformity with Article 93 of the Constitution, shall declare state of emergency; it shall*

consider and resolve on a decree of a state of emergency declared by the executive.' What does that mean? Is it to mean that apart from the Council of Ministers' power, the House also has an independent prerogative to declare a state of emergency, or is it referring to the approval process that is described under Art 93(3)? It is clear from the provision that the approval aspect is a separate decision than declaring independently of a state of emergency. Therefore, we can see that the House has its own power to declare a state of emergency for the purposes described under Art 93. But the fact that it is the Council which is supposed to implement the declaration and also considering the fact that the closest institution to the public's day-to-day life is the Council, it is somehow superfluous to provide a separate prerogative for the House to issue such emergency proclamations. Or do you think there are circumstances where the House's independent power might be of some purpose? Please discuss this point with your friend.

By its nature, a state of emergency is temporary and permits the government to suspend some of the fundamental rights and freedoms of the people. And our constitution is clear in terms of the temporariness of the measure in the sense that it provides various levels of periods for which a declared state of emergency could last. The first maximum is stipulated to be six months, or less. Within these months the Council is expected to make reports to the House through the Emergency Inquiry Board about the measures taken and other matters as described under Art 93(6) and this way the executive's exercise of emergency power will have to be checked by the legislative organ. Where these six months are not enough to restore a state of normalcy in which the full respect of the fundamental rights and freedoms can again be secured, peace, security and rule of law maintained, then the Council may request for an extension of the period of the emergency. But for each extension, the House can only give four months *successively*. As to how many times can the House give such extension is four months each, however, not clear.

The international standard on derogation tells us that any derogation must be exceptional and temporary. There is no and can not be, however, internationally agreed and definitive time limit for the period of which a state of emergency may last since this depends up on the particular circumstance that calls for the declaration. The only limit that the provision on state of emergency imposes is that the derogation must be limited to 'the extent strictly required by the exigencies of the situation.'

Article 4: ICCPR

1. In time of public emergency which threatens the life of the nation and the existence of which is officially proclaimed, the States Parties to the present Covenant may take measures derogating from their obligations under the present Covenant to the extent strictly required by the exigencies of the situation, provided that such measures...do not involve discrimination solely on the ground of race, color, sex, language, religion or social origin.
2. No derogation from articles 6 (Right to life), 7 (Prohibition of Torture, Inhuman and Degrading treatment or Punishment), 8 (paragraphs 1 (Prohibition of Slavery) and 2 (Prohibition of Servitude)), 11 (Prohibition of imprisonment for failure to fulfill contractual obligations), 15 (Prohibition of the non-retroactive application of criminal law), 16 (The right to recognition everywhere as a person) and 18 (Freedom of thought, conscience and religion) may be made under this provision.
3. Any State Party to the present Covenant availing itself of the right of derogation shall immediately inform the other States Parties to the present Covenant, through the intermediary of the Secretary-General of the United Nations, of the provisions from which it has derogated and of the reasons by which it was actuated. A further communication shall be made, through the same intermediary, on the date on which it terminates such derogation.

The Human Rights Committee that is established under the UN to oversee the implementation of this Covenant in its general comment stated the following: 'Measures derogating from the provisions of the Covenant must be of an exceptional and temporary nature. Before a State moves to invoke article 4, two fundamental conditions must be met: *the situation must amount to a public emergency which threatens the life of the nation, and the State party must have officially proclaimed a state of emergency.* The latter requirement is essential for the maintenance of the principles of legality and rule of law at times when they are most needed. When proclaiming a state of emergency with consequences that could entail derogation from any provision of the Covenant, States must act within their constitutional and other provisions of law that govern such proclamation and the exercise of emergency powers.'

The next and most important point that we shall discuss relates the circumstances that permit the declaration of state of emergency that will give the executive branch of the government 'all the necessary power to protect the country's peace and sovereignty, and to maintain public security, law and order.' This is quite scary situation where the organ that controls the armed forces is being told to do whatever it can for the purposes of restoring peace and security that has been disturbed by the particular circumstance that called for the declaration. So, what might be considered as a situation that justifies the issuance of state of emergency is an important aspect of the overall concept of derogation. The answer to this question is in ICCPR Art 4(1) by saying that it has to be '*a public emergency that threatens the life of the nation.*' This is far from being clear in providing an understanding of the circumstances that give states the right to suspend some of the rights of the covenant. However the detailed circumstances are to be provided under each country's legislation, and in most of the times it is given in their constitutions. Thus, Art 93 must be analyzed to get answer to what constitutes a 'threat to the life of the nation.'

I have to ask you to once again read Art 93(1)(a). Did you read it? Great! This provision gives us the answer to our query. The circumstances can be put in four main headings and a fifth point which is applicable to most of those four circumstances. Accordingly, the situations that might justify the declaration of state of emergency under the Ethiopian constitutional system are;

- External invasion,
- A break down of law and order which endangers the constitutional order,
- A natural disaster, and
- An epidemic.

These are the four main points that might be cited by the Council of Ministers while declaring a state of emergency. However for the last three headings, an additional test must be met before they become as valid grounds for suspension. This is the fact that where a break down of law and order, a natural disaster or an epidemic can adequately be controlled by the regular law enforcement agencies and personnel such as the civilian police force, those grounds may not be raised as justification for the declaration of state of emergency. Thus, while the grounds themselves can be considered as requirements of legality, this latter condition is a requirement of proportionality in the sense that the state of emergency may not be proportional in circumstances where the ordinary police force can quell the unrest without any need

of suspension of the fundamental rights and freedoms through the state of emergency.

However, this requirement as is phrased in the provision seems to be applicable only to the second point. Nonetheless, there is no reason to isolate the proportionality test as applicable only to a break down of law and order and not for natural disaster or epidemic. It is worth noting the Human Rights Committee's statement with regard to Article 4(1) of the ICCPR which is of the identical nature with Art 93(1) of the our constitution;

The issues of when rights can be derogated from, and to what extent, cannot be separated from the provision in article 4, paragraph 1, of the Covenant according to which any measures derogating from a State party's obligations under the Covenant must be limited "to the extent strictly required by the exigencies of the situation". This condition requires that States parties provide careful justification not only for their decision to proclaim a state of emergency but also for any specific measures based on such a proclamation. If States purport to invoke the right to derogate from the Covenant during, for instance, a natural catastrophe, a mass demonstration including instances of violence, or a major industrial accident, they must be able to justify not only that such a situation constitutes a threat to the life of the nation, but also that all their measures derogating from the Covenant are strictly required by the exigencies of the situation. In the opinion of the Committee, the possibility of restricting certain Covenant rights under the terms of, for instance, freedom of movement (art. 12) or freedom of assembly (art. 21) is generally sufficient during such situations and no derogation from the provisions in question would be justified by the exigencies of the situation. (UN Human Rights Committee General Comment Number 29, on Article 4: Derogations during a state of Emergency, Para 5)

Accordingly, therefore, derogation through the declaration of state of emergency will not be justified first where either of the grounds for derogation do not exist, and second where those emergencies other than external invasion must be tried through normal law enforcement agencies and only where such attempt is not successful that a state of emergency may be justified. While failure to meet the first requirement violates the principle of legality in relation to state of emergency, failure to meet the second violates the requirements of proportionality, which shall be checked by the

House of Peoples' Representatives when the matter is presented to it for approval by the Council of Ministers.

Dear student, are you following the discussion? Does it give any sense to you? I only wish that it does. We shall also be discussing some of the issues which happen to be difficult for you to understand, though I hope that things are very clear to you.

Finally, we shall be discussing those provisions that might legitimately be suspended by measures of the state of emergency. The rule is provided under Art 93(4)(b) which is a continuation of the blanket power given under Art 93(4)a) stating that the executive has 'all the necessary powers' for the purposes of restoring peace and order. It provides

*The Council of Ministers shall have the power to **suspend such political and democratic rights contained in this Constitution** to the extent necessary to avert the conditions that required the declaration of a state of emergency.*

Thus, it can suspend all the political and democratic rights contained in the constitution so long as so doing is necessary to avert the threats that required the declaration. This provision again confuses the approach once adopted for classification of the rights by introducing a new approach, which is classification of the rights and freedoms into 'political and democratic rights.' Now one will have to look into those rights from the human rights part that are of political in nature and which are not, or we will have to assume that by 'political rights' the constitution is referring to the ones which are already referred to as 'human rights.' Dear student, which one do you think is the appropriate line of thinking? I would say that it is very much unlikely to follow the latter line of thinking for human rights can not be considered as synonymous with political rights, even if political rights are part of human rights.

Mostly the term political right is addressed together with civil rights as 'civil and political rights' though it not that difficult to distinguish those rights that are principally to be considered as political ones. They mostly relate with free and fair elections, freedom of the press, freedom of assembly, demonstration and petition, none of these is within the human rights provisions list of the constitution. Thus, if we have to follow this normal understanding of the term 'political rights', the

provision is then supposed only to describe those rights stated in the constitution as 'democratic rights.' If this is so, again we will have to further assert that the provision is making unnecessary repetition in saying 'such political and democratic rights' because the two are the same in meaning. We will once again come back to this point as it is very important in relation to the next point that we are going to discuss.

Dear student, I will have to ask you once again to go back and read Art 93(4)(b) & (c) which discuss which fundamental rights and freedoms might be derogated from in times of emergency and which can never be derogated or suspended, even in emergency situations. Have you finished reading? Very fine! What do you notice? Now, once again read Art 4(2) of the ICCPR that I have duplicated for you above and see the difference between the two. You will have to bear in your mind that Ethiopia is a party to the ICCPR since 11 June 1993, and also carefully consider Art 13(2). Art 1, which establishes the federal state structure, Art 18, which prohibits inhuman, cruel, inhuman treatment or punishment, slavery, servitude and safeguard against being imprisonment for failure to fulfill contractual obligations, Art 25, which provides the right to equality, Art 39(1) & (2) which stipulate about the right to self-determination including secession are the ones that are non-derogable rights under the FDRE constitution. However, the ICCPR adds to these listings the right to life, prohibition of the retroactive application of criminal law, the right to recognition everywhere as a person, and freedom of thought, conscience and religion. Thus, there is a very difficult situation here to respond to because while the international standard stipulates that the right to life and the other rights are not to be suspended under any circumstance, the national standard as provided in the constitution makes it a derogable right. Do you think in such circumstances the international obligation of the state is going to have precedence over its national commitment and accordingly people who might be killed or whose right to religion has been curtailed through a declared state of emergency can bring an action against the state under the international covenant that Ethiopia is a party?

This is quite controversial an issue that it calls for the interpretation of the constitution. And Art 13(2) provides that the provisions of Chapter III must be interpreted in conformity with the country's international human rights obligations. However, Art 93 is not part of chapter III, apparently making it out of the ambit of Art 13(2). Nonetheless, this provision is speaking about the fundamental rights and freedoms and the question is whether or not those fundamental rights and freedoms

are subject to derogation in times of emergency. To that extent, the international human rights instruments must be consulted even if the Martial Law provision (Art 93) is out of chapter III of the constitution. Again the problem is how to bypass the supremacy clause of Art 9(1) while interpreting Chapter III in light of the international standards. Dear student, what is your opinion on this point? Can the Council of Ministers suspend the freedom of thought through a state of emergency? The Human rights Committee even goes further and stipulates that even if some rights are not mentioned as non-derogable in Art 4(2), there are, in the Committee's opinion, some other fundamental rights and freedoms which are not subject to derogation in a declared state of emergency. Thus, it is suggesting that let alone to reduce from those listed as non-derogable the idea is to expand those fundamental rights and freedoms that can never be derogated, and this way there is a progressively growing tendency to use only peaceful and less aggressive measures to calm any state of unrest. Carefully read the following excerpt from the Human Rights Committee's general comment in relation to this matter.

13. In those provisions of the Covenant that are not listed in article 4, paragraph 2, there are elements that in the Committee's opinion cannot be made subject to lawful derogation under article 4. Some illustrative examples are presented below.

- a) All persons deprived of their liberty shall be treated with humanity and with respect for the inherent dignity of the human person. Although this right, prescribed in article 10 of the Covenant, is not separately mentioned in the list of non-derogable rights in article 4, paragraph 2, the Committee believes that here the Covenant expresses a norm of general international law not subject to derogation. This is supported by the reference to the inherent dignity of the human person in the preamble to the Covenant and by the close connection between articles 7 and 10.
- b) The prohibitions against taking of hostages, abductions or unacknowledged detention are not subject to derogation. The absolute nature of these prohibitions, even in times of emergency, is justified by their status as norms of general international law.
- c) The Committee is of the opinion that the international protection of the rights of persons belonging to minorities includes elements that must be respected in all circumstances. This is reflected in the

prohibition against genocide in international law, in the inclusion of a non-discrimination clause in article 4 itself (Para 1), as well as in the non-derogable nature of article 18.

- d) Deportation or forcible transfer of population without grounds permitted under international law, in the form of forced displacement by expulsion or other coercive means from the area in which the persons concerned are lawfully present, constitutes a crime against humanity. The legitimate right to derogate from this right during a state of emergency can never be accepted as justifying such measures.
- e) No declaration of a state of emergency made pursuant to article 4, paragraph 1, may be invoked as justification for a State party to engage itself, contrary to article 20, in propaganda for war, or in advocacy of national, racial or religious hatred that would constitute incitement to discrimination, hostility or violence.

14. Article 2, paragraph 3, of the Covenant requires a State party to the Covenant to provide remedies for any violation of the provisions of the Covenant. This clause is not mentioned in the list of non-derogable provisions in article 4, paragraph 2, but it constitutes a treaty obligation inherent in the Covenant as a whole. Even if a State party, during a state of emergency, and to the extent that such measures are strictly required by the exigencies of the situation, may introduce adjustments to the practical functioning of its procedures governing judicial or other remedies, the State party must comply with the fundamental obligation, under article 2, paragraph 3, of the Covenant to provide a remedy that is effective.

15. It is inherent in the protection of rights explicitly recognized as non-derogable in article 4, paragraph 2, that they must be secured by procedural guarantees, including, often, judicial guarantees. The provisions of the Covenant relating to procedural safeguards may never be made subject to measures that would circumvent the protection of non-derogable rights. Article 4 may not be resorted to in a way that would result in derogation from non-derogable rights. Thus, for example, as

article 6 of the Covenant is non-derogable in its entirety, any trial leading to the imposition of the death penalty during a state of emergency must conform to the provisions of the Covenant, including all the requirements of articles 14 and 15.

16. Safeguards related to derogation, as embodied in article 4 of the Covenant, are based on the principles of legality and the rule of law inherent in the Covenant as a whole. As certain elements of the right to a fair trial are explicitly guaranteed under international humanitarian law during armed conflict, the Committee finds no justification for derogation from these guarantees during other emergency situations. The Committee is of the opinion that the principles of legality and the rule of law require that fundamental requirements of fair trial must be respected during a state of emergency. Only a court of law may try and convict a person for a criminal offence. The presumption of innocence must be respected. In order to protect non-derogable rights, the right to take proceedings before a court to enable the court to decide without delay on the lawfulness of detention, must not be diminished by a State party's decision to derogate from the Covenant. (General Comment by the UN Human Rights Committee, Number 29, Para 13-16)

Dear student, can you be able to match these listings with any of the fundamental rights and freedoms of Chapter III of the constitution of Ethiopia?

- Human treatment of persons held in custody is provided under Art 21 of the Constitution;
- The rights relating to liberty and prohibition of illegal or unacknowledged detentions are provided under Arts 17 and 19;
- Prohibition of deportations, forceful displacement of persons from their lawful places of residence can be made to fall under Art 32 of the constitution;
- Prohibition of propaganda for war, racial or other discrimination is an obligation for both the state and individuals in the sense that even if freedom of expression is guaranteed, neither the state nor individuals may be able to defend their actions on the pretext of this freedom if their acts are meant for propaganda to call for ethnic or other conflicts. This is

generally provided under Art 29(6) of the constitution and accordingly a state can not justify such acts by a declared state of emergency either;

- Access to justice is a right provided under Art 37;
- The rights relating to fair trial and other judicial guarantees are provided under Art 20.

The question is, therefore, can the Ethiopian Council of Ministers, for instance, deny the right to fair trial to individuals on the pretext of state of emergency as this provision is not mentioned under Art 93(4)(c) as a non-derogable right? Can it forcefully displace individuals? Can it kill individuals? Can it make propaganda for ethnic hatred? Etc, etc.